

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS WRIGHT ELECTRO
MECHANICAL CORP. d/b/a Curtiss-
Wright Steam and Air Solutions,
STEPHANIE LANIER, and SHANE
SABLOTSKY,

Defendants.

Case No. 2:25-cv-00405-RMG-MGB

ORDER

Plaintiff, through counsel, initially filed this employment discrimination action in state court. (Dkt. No. 1-1.) Defendants removed the case to this Court on January 21, 2025. (Dkt. No. 1.) Shortly thereafter, Plaintiff's counsel withdrew. (Dkt. Nos. 10, 11, 12, 13, 19.) Plaintiff is now proceeding *pro se*. This case was automatically referred to the undersigned United States Magistrate Judge for all pretrial proceedings pursuant to the provisions of 28 U.S.C. § 636(b)(1)(A) and (B) and Local Rule 73.02(B)(2)(g), D.S.C. Currently before the Court are various discovery motions, including: a Motion to Compel (Dkt. No. 207) filed by Defendants; a Motion to Compel, Motion for Protective Order, and Motion for Sanctions (Dkt. No. 210) filed by Plaintiff; a Motion to Compel Discovery, Enforce Subpoenas, and Depose Additional Witnesses (Dkt. No. 214) filed by Plaintiff; a Motion for Protective Order, Motion to Quash, and Motion for Sanctions (Dkt. No. 220) filed by Plaintiff; and a Motion to Compel the Depositions of Jeff Womack, Brian Fogarty, and Caleb Roy (Dkt. No. 225) filed by Plaintiff.

For the reasons set forth below, the undersigned: **GRANTS IN PART AND DENIES IN PART** Defendants' Motion to Compel (Dkt. No. 207); **GRANTS IN PART AND DENIES IN**

PART Plaintiff's Motion to Compel, Motion for Protective Order, and Motion for Sanctions (Dkt. No. 210); **GRANTS IN PART AND DENIES IN PART** Plaintiff's Motion to Compel Discovery, Enforce Subpoenas, and Depose Additional Witnesses (Dkt. No. 214); **DISMISSES IN PART AND DENIES IN PART** Plaintiff's Motion for Protective Order, Motion to Quash, and Motion for Sanctions (Dkt. No. 220); and **DISMISSES IN PART AND DENIES IN PART** Plaintiff's Motion to Compel the Depositions of Jeff Womack, Brian Fogarty, and Caleb Roy (Dkt. No. 225).

RELEVANT LEGAL STANDARDS

Federal district courts are vested with broad discretion in resolving discovery disputes. *Erdmann v. Preferred Research, Inc., of Ga.*, 852 F.2d 788, 792 (4th Cir. 1988). Federal Rule of Civil Procedure 26 governs discovery and provides:

Unless otherwise limited by court order, the scope of discovery is as follows: Parties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense and proportional to the needs of the case, considering the importance of the issues at stake in the action, the amount in controversy, the parties' relative access to relevant information, the parties' resources, the importance of the discovery in resolving the issues, and whether the burden or expense of the proposed discovery outweighs its likely benefit. Information within this scope of discovery need not be admissible in evidence to be discoverable.

Fed. R. Civ. P. 26(b)(1).

Discovery under the Federal Rules of Civil procedure "is broad in scope and freely permitted." *Carefirst of Maryland, Inc. v. Carefirst Pregnancy Centers, Inc.*, 334 F.3d 390, 402 (4th Cir. 2003). "The burden of proof is with the party objecting to the discovery to establish that the challenged production should not be permitted." *HDSherer LLC v. Nat. Molecular Testing Corp.*, 292 F.R.D. 305, 308 (D.S.C. 2013). However, a court must limit discovery if it determines that:

(i) the discovery sought is unreasonably cumulative or duplicative, or can be obtained from some other source that is more convenient, less burdensome, or less expensive; (ii) the party seeking discovery has had ample opportunity to obtain the

information by discovery in the action; or (iii) the proposed discovery is outside the scope permitted by Rule 26(b)(1).

Fed. R. Civ. P. 26(b)(2)(C). Furthermore, “[t]he court may, for good cause, issue an order to protect a party or person from annoyance, embarrassment, oppression or undue burden or expense” by, *inter alia*, “forbidding the disclosure or discovery” and “forbidding inquiry into certain matters, or limiting the scope of disclosure or discovery to certain matters.” Fed. R. Civ. P. 26(c)(1).

Rule 37 of the Federal Rules of Civil Procedure provides that if a party fails to respond to discovery, the party seeking discovery may move for an order compelling production. The decision to grant or to deny a motion to compel discovery rests within the broad discretion of the trial court. *See Lone Star Steakhouse & Saloon, Inc. v. Alpha of Va., Inc.*, 43 F.3d 922, 929 (4th Cir. 1995) (“This Court affords a district court substantial discretion in managing discovery and reviews the denial or granting of a motion to compel discovery for abuse of discretion.”) (citations omitted); *LaRouche v. Nat’l Broad. Co.*, 780 F.2d 1134, 1139 (4th Cir. 1986) (“A motion to compel discovery is addressed to the sound discretion of the district court.” (citation omitted)).

DISCUSSION

I. Defendant’s Motion to Compel (Dkt. No. 207)

In their Motion to Compel (Dkt. No. 207), Defendants contend that “Plaintiff’s responses to Defendants’ First Requests for Production and First Set of Interrogatories . . . contain numerous baseless and inappropriate objections.” (*Id.* at 2.) Defendants therefore request that the Court compel Plaintiff to supplement her responses. (*Id.*) Plaintiff opposes Defendants’ motion. (*See generally* Dkt. No. 213.) The undersigned considers the parties’ respective arguments, below.

A. Flash Drive Materials

Defendants first request that the Court compel Plaintiff to provide Defendants with copies of certain records Plaintiff previously submitted to the Court via flash drive. (*Id.* at 3.) Defendants

explain that these records include evidence of cyber intrusions, surveillance, whistleblower complaints, administrative complaints, and correspondence with others regarding allegations in this lawsuit. (*Id.*) According to Defendants, “Plaintiff evidently concedes that these documents are relevant because she provided them to the Court,” but she refuses to provide a copy of the records to Defendants. (*Id.*) Defendants note that they have contacted the Clerk’s office to request a copy of the records, but “the Clerk of Court, understandably, advised that the flash drive was the property of Plaintiff and that the Court could not provide a copy to Defendants.” (*Id.*) Accordingly, Defendants request that the Court direct Plaintiff to provide a copy of the documents submitted to the Court to Defendants. (*Id.*)

Plaintiff’s response to Defendants’ motion confirms her belief that she need not provide the requested materials to Defendants because she has already provided them to the Court. (Dkt. No. 213 at 1–2.) However, a *pro se* litigant cannot satisfy discovery obligations by filing materials with the Court. *See* L. Civ. R. 5.01, D.S.C. (providing that discovery material “shall be served upon other counsel or parties, but shall not be filed with the court”). Rather, as explained in the Pro Se Litigant Guide regarding Discovery,¹ parties should “not send copies of discovery requests or responses to the court for filing or for information unless: [] directed by the court to do so or [] filing the discovery document in support of or in opposition to a motion,” and, in any event, parties are required to “[s]end the original of any responses [provided] to the party requesting discovery and keep a copy for [their] records.” Plaintiff does not contest that the materials at issue are relevant to her claims. (*See generally* Dkt. No. 213.) Accordingly, Plaintiff is **ORDERED** to independently produce to Defendants copies of the records she submitted to the Court via flash drive on or about

¹ The undersigned notes that the relevant portion of the Pro Se Litigant Guide was sent to Plaintiff on October 1, 2025. (*See* Dkt. No. 136.)

May 13, 2025. (*See* Dkt. No. 40.) Plaintiff shall have until January 30, 2026 to produce these records. (*See* Dkt. No. 237.)

B. Communications Regarding Lawsuit

Defendants next contend that Plaintiff claims to have produced all responsive communications with individuals regarding this lawsuit but has repeatedly represented to Defense Counsel “that she obtained information about events and individuals in this case.” (Dkt. No. 207 at 3–4.) More specifically, Defendants assert that “Plaintiff has failed to produce a complete copy of her text messages with Jeff Womack, as portions of the conversations are cut off.” (*Id.* at 4.) According to Defendants, “Plaintiff testified that she communicated with Jeff Womack about this case, and, as such, these communications are relevant,” especially because “Plaintiff has identified Womack as a person who has knowledge of the underlying facts supporting her claims.” (*Id.*)

Plaintiff’s response in opposition to Defendants’ motion makes no mention of Defendants’ request that she produce all responsive communications with individuals regarding this lawsuit, including a complete copy of her text messages with Jeff Womack. (*See generally* Dkt. No. 213.) The undersigned must therefore assume that she consents to producing all such communications. Further, the undersigned agrees with Defendants that the requested information is relevant to Plaintiff’s claims. Plaintiff is therefore **ORDERED** to produce such materials on or before January 30, 2026. (*See* Dkt. No. 237.)

C. Remaining Requests

Defendants also ask the Court to compel Plaintiff to produce documents relevant to her damages claims. (Dkt. No. 207.) More specifically, Defendants ask the Court to compel Plaintiff to supplement her insufficient responses to the following of Defendants’ Requests for Production and Interrogatories:

Request No. 6: Produce all documents supporting your allegations that Defendants' actions resulted in monetary damages (including, but not limited to, lost wages, loss of future wages, lost benefits, loss of future benefits, and litigation expenses) to you.

Request No. 7: Produce all documents relating to or supporting your allegations that Defendants' actions resulted in your suffering mental and emotional distress.

Request No. 8: Produce all documents referring to, reflecting, evidencing, or commenting on your physical, mental, or emotional health or condition since April 2022 to present, including, but not limited to, all opinions, reports, communications, and files from present or prior physicians, psychiatrists, psychologists, social workers, therapists, clergy, counselors, or any other professional commenting on your physical, mental, or emotional health[], including tests, test results, or evaluation reports for any tests taken, and statements of charges for services rendered.

Request No. 9: Produce signed copies of the psychotherapy records authorization form and medical records authorization form attached as Attachments A and B.

Request No. 11: Produce all documents which reflect income, compensation, and/or earnings of any kind received by you from November 2023 through present, including documents showing wages, salary, and benefits; independent contractor income; unemployment compensation benefits; insurance payments; disability benefits; retirement benefits; annuity; pension; or any other payments you received.

Request No. 12: Produce each federal and state income tax return (including W-2 forms, 1099 forms, schedules, and attachments) that you filed or intend to file from 2022 through present.

Interrogatory No. 5: Identify all sources of income you received since your last day of employment with Defendant Curtiss-Wright, whether via employment, short-term or long-term disability benefits, social security benefits, workers' compensation benefits, unemployment benefits, self-employment, independent contractor income, insurance payments, retirement benefits, government subsidies, or some other source, and include the amount received and the dates when you received such income.

Interrogatory No. 15: Identify all legal entities that you own, operate, or participate as a member in, including but not limited to Nelson Funding Group, LLC.

(*Id.* at 4–6.) Defendants contend that the information requested above is directly related to Plaintiff's request for monetary damages for lost wages and compensatory damages, in that this

information is necessary to determine the amount of Plaintiff's lost wages and her mitigation efforts. (*Id.* at 6.) Similarly, Defendants note that "Plaintiff [] seeks emotional distress damages, but she objects to producing any medical information related to her mental health," despite the fact that her "mental health records are highly relevant, for, as she testified during her deposition, emotional distress damages represent the primary form of damages that she seeks in this case." (*Id.* at 7.) Defendants contend that "[t]hese records are central to evaluating the nature and extent of the damages she alleges and are discoverable." (*Id.*)

Defendants next assert that Plaintiff should be compelled to provide her communications with government agencies related to her claims. (*Id.*) Specifically, Defendants note that "Plaintiff objected to Defendants' request that she produce all documents she provided to or received from, and all communications she had with, the Office of the Naval Inspector General related to complaints she filed against Curtiss-Wright." (*Id.*) Defendants assert that Plaintiff's objection is not made in good faith, as her complaint to the Office of the Naval Inspector General forms the basis of her Title VII retaliation claim and her whistleblower retaliation claim. (*Id.*) Accordingly, Defendants contend that "[t]hese documents are not only relevant—they are central to Plaintiff's claims." (*Id.*)

Additionally, Defendants note that Plaintiff "alleges wage discrimination, claiming she was more experienced and qualified than a white male comparator but was paid less," rendering Plaintiff's work history and qualifications relevant to this civil suit. (*Id.*) Defendants contend that Plaintiff nevertheless objected to their request for a copy of her current resume. (*Id.*) Defendants assert that her "objection is improper given the relevance of the resume to Plaintiff's qualifications and experience, which are central to her [wage discrimination] claims." (*Id.*)

Finally, Defendants contend that Plaintiff improperly objected to Defendants' interrogatory requesting identification of her social media accounts. (*Id.* at 8.) According to Defendants, "it is undisputed that Plaintiff has posted at least one video about her employment with Curtiss Wright on social media, and, even if her posts do not bear directly on her employment, they are evidence of her current physical and mental condition." (*Id.*) Defendants further assert that "Plaintiff has placed her own social media accounts at issue in this case by serving multiple discovery requests on Defendants seeking information regarding the viewing and monitoring of such accounts," and her social media accounts are therefore relevant and discoverable for this additional reason. (*Id.*)

Upon review, the undersigned agrees with Defendants. With respect to Plaintiff's employment and financial records (*i.e.*, her resume and the information requested in Request Nos. 6, 11, and 12, and Interrogatory Nos. 5 and 15), it is well settled that these records are relevant to the claims alleged here. *See, e.g., Coleman v. Boeing Co.*, No. 2:16-cv-1451-DCN-MGB, 2017 WL 11519051, at *5 (D.S.C. June 29, 2017) (finding plaintiff's earnings after employment with defendant ended relevant to his Title VII claims); *Acosta v. Hilton Worldwide*, No. 4:15-cv-00495-RBH, 2015 WL 5089640, at *7 (D.S.C. Aug. 27, 2015) (finding subsequent and prior employment history relevant to plaintiff's employment discrimination claims, including damages); *Koukuntla v. Toll Bros.*, No. 5:23-cv-701-BO, 2025 WL 842257, at *3–4 (E.D.N.C. Mar. 18, 2025) (noting that "prior and subsequent employment history is relevant to employment discrimination claims, including damages," and that "[t]ax returns have been held relevant to the issue of a plaintiff employee's mitigation of damages"), *objections overruled*, 2025 WL 3110800 (E.D.N.C. Nov. 6, 2025); *Bryson v. Compucom Sys., Inc.*, No. 19-cv-1121, 2020 WL 13042300, at *3 (M.D.N.C. Nov. 16, 2020) ("As he seeks damages for lost wages, Plaintiff's income while working for CompuCom, any subsequent income, and any attempts to mitigate the loss of his CompuCom

wages are clearly relevant to this case.”); *Ying-Jun Chen v. Maryland Dep’t of Health & Mental Hygiene*, No. ELH-15-cv-1796, 2017 WL 1533988, at *2 (D. Md. Apr. 27, 2017) (finding pay stubs, payroll records, earnings records, W-2 and 1099 forms, and any other documents relating to all sources of income or earnings—including retirement benefits and plans, health insurance, wages, salary, and any other compensation—discoverable and relevant to lost wages claim and determination of damages); *Peters v. Baltimore City Bd. of Sch. Comm’rs*, No. WMN-13-cv-3114, 2014 WL 4187307, at *7, n.1 (D. Md. Aug. 21, 2014) (noting “W–2s and payroll records . . . are ordinarily discoverable in the employment law context[.]”); *Iannucci v. Rite Aid Corp.*, No. 1:11-cv-281, 2012 WL 3019953, at *4 (W.D.N.C. July 24, 2012) (rejecting plaintiff’s attempt to limit discovery responses to the dates of employment with defendant because a plaintiff’s subsequent and prior employment history are relevant in an employment discrimination case and allowing discovery with respect to prior and subsequent employment history, information and documents regarding salary and resumes submitted to prospective employees, any discipline, termination, or demotion in connection with the employers identified during the relevant time period, and information related to any sources of income plaintiff received), *aff’d*, 512 F. App’x 365 (4th Cir. 2013); *Neel v. Mid-Atl. of Fairfield, LLC*, No. SAG-10-cv-405, 2012 WL 3264965 (D. Md. Aug. 9, 2012) (permitting discovery of payroll, income, health insurance, and other records in lost wages claim to determine damages); *Cole v. Saks, Inc.*, No. 5:06-cv-229-F, 2007 WL 2997453, at *7 (E.D.N.C. Oct. 12, 2007) (finding plaintiff’s current employment, current earnings, and job search efforts directly relevant to the issue of damages in an employment discrimination action). Further, the relevant requests are not overly broad or unduly burdensome; rather, they are limited in time and scope. (See generally Dkt. Nos. 207-1, 207-2); see also Fed. R. Civ. P. 26. Accordingly, Defendants’ Motion to Compel (Dkt. No. 207) is **GRANTED** as to Plaintiff’s employment and

financial records. Plaintiff is **ORDERED** to supplement her responses to the aforementioned requests on or before January 30, 2026. (*See* Dkt. No. 237.)²

Plaintiff's communications with government agencies related to her claims are also relevant and discoverable. *See Koukuntla*, 2025 WL 842257, at *4 (E.D.N.C. Mar. 18, 2025) (finding defendant's request for information and records related to plaintiff's communications regarding lawsuit—including communications with the EEOC regarding charge and communications with defendant regarding application for employment, filing of the charge, and lawsuit—"unquestionably within the scope of discovery" in employment discrimination case). Plaintiff is therefore **ORDERED** to provide Defendants "all documents she provided to or received from, and all communications she had with, the Office of the Naval Inspector General related to complaints she filed against Curtiss-Wright" on or before January 30, 2026.

Finally, Defendants' request that the Court compel Plaintiff to identify her social media accounts is also **GRANTED**. The specific requests at issue here read as follows:

Request No. 1: Produce copies of any communications or documents between you and any person (except for your prior attorney) regarding the claims and allegations in your lawsuit. This request includes, but is not limited to, emails from your personal email account(s), text messages from your phone, messages on social media, and any documents exchanged.

Request No. 21: Produce any videos or social media posts related to your employment with Curtiss-Wright or the claims in this lawsuit.

² It is worth noting that federal case law recognizes a qualified privilege limiting the disclosure of tax returns in certain instances. *Interstate Narrow Fabrics, Inc. v. Century USA, Inc.*, No. 1:02-cv-000146, 2004 WL 444570, at *2 (M.D.N.C. Feb. 24, 2004). Nonetheless, tax returns are discoverable where, as here, (1) they are relevant and (2) the information is not available from other sources. *Id.* Further, Plaintiff's response to Defendants' First Set of Requests for Production indicates that "[n]o responsive tax returns will be produced absent a protective order." (Dkt. No. 207-3 at 4.) To address Plaintiff's confidentiality concerns, the parties are **ORDERED** to file a Motion for Entry of a Confidentiality Order **as soon as practicable but no later than December 30, 2025.**

(Dkt. No. 207-1 at 4, 6.) In response, Plaintiff claims that “[a]ll responsive communications and recordings [were] already produced” via the flash drive submitted to the Court in May 2025. (Dkt. No. 207-3 at 2, 5.) In other words, Plaintiff does not appear to object to these requests. (*Id.*)

What is more, the requested information regarding Plaintiff’s social media accounts is relevant and narrowly tailored to Plaintiff’s claims. *See Gaske v. Crabcake Factory Seafood House, LLC*, No. 1:18-cv-02630-JMC, 2021 WL 3188007, at *7 (D. Md. July 28, 2021) (noting that discovery requests seeking social media data “must be relevant to a claim or defense, proportional to the needs of the case, and not unreasonably cumulative, duplicative, or designed to embarrass or harass”); *see also* Fed. R. Civ. P. 26(b) and (g). Further, the Court has already ordered Plaintiff to produce the materials she submitted to the Court via flash drive in May 2025 which, according to Plaintiff, include the social media records requested by Defendants. Again, Plaintiff should produce this information on or before January 30, 2026. (*See* Dkt. No. 237.)

Defendants’ remaining requests require a more complicated analysis. These requests (*i.e.*, Request Nos. 7, 8, and 9) seek: documents relating to or supporting Plaintiff’s allegations that Defendants’ actions resulted in her suffering mental and emotional distress; documents referring to, reflecting, evidencing, or commenting on Plaintiff’s physical, mental, or emotional health or condition since April 2022; and signed copies of a psychotherapy records authorization form and medical records authorization form. (Dkt. No. 207 at 4–5.) In response to Request No. 7, Plaintiff agreed to “request a letter from her therapist to support claims of emotional distress.” (Dkt. No. 207-3 at 3.) However, Plaintiff objected to Request Nos. 8 and 9, stating that these requests seek “confidential medical information not relevant or proportional to the needs of this case and protected by HIPPA.” (*Id.*) Plaintiff stated that she would “provide a summary letter from her therapist in lieu of medical records.” (*Id.*) In her response in opposition to Defendants’ Motion to

Compel, Plaintiff further contends that “Defendant[s’] attempt to compel production of psychotherapy or medical records is an invasion of privacy and violates the psychotherapist-patient privilege recognized in *Jaffee v. Redmond*, 518 U.S. 1 (1996).” (Dkt. No. 213 at 2.) Plaintiff’s response in opposition further notes that she “expressly withholds consent to any release of such records.” (*Id.*)

At the outset, the requested records are clearly relevant to this civil action. Indeed, the Fourth Amended Complaint brings a claim for intentional infliction of emotional distress and seeks compensatory damages for, *inter alia*, “emotional distress, suffering, inconvenience, mental anguish, and loss of enjoyment of life.” (Dkt. No. 79 at 17–18); *see, e.g., Carr v. Double T Diner*, No. WMN-10-cv-00230, 2010 WL 3522428, at *1–3 (D. Md. Sept. 8, 2010) (granting motion to compel discovery of plaintiff’s medical records related to her mental health where plaintiff placed mental health at issue by seeking damages grounded in emotional distress); *EEOC v. Sheffield Fin. LLC*, No. 1:06-cv-00889, 2007 WL 1726560, at *4 (M.D.N.C. June 13, 2007) (finding medical records subject to discovery where plaintiff sought damages for past and future emotional distress, humiliation, anxiety, inconvenience, and loss of enjoyment of life); *Teague v. Target Corp.*, No. 3:06-cv-0191, 2006 WL 3690642, at *1–2 (W.D.N.C. Dec. 11, 2006) (granting defendant’s motion to compel discovery regarding plaintiff’s health care treatment along with medical records where plaintiff sought compensatory damages for emotional distress); *Harik v. Swales Aerospace*, No. AW-05-cv-1182, 2006 WL 8457008, at *2 (D. Md. Mar. 6, 2006) (“Given that Plaintiff is seeking an award for emotional damages, it is reasonable for Defendant to seek discovery of any medical history that would impact upon any emotional stress that Plaintiff may have suffered as a result of Defendant’s conduct. This will include information regarding events arising before, during, and after the concerns raised in the Complaint.”).

Having determined the requested records are relevant, the undersigned considers Plaintiff's claim that certain of the records are protected by the psychotherapist-patient privilege.³ As Plaintiff correctly notes, the United States Supreme Court in *Jaffee* recognized a "psychotherapist privilege" under Rule 501, Fed. R. Evid. The Fourth Circuit has since clarified that, while this privilege exists in federal court, a patient may nonetheless "waive the psychotherapist-patient privilege by knowingly and voluntarily relinquishing it." *United States v. Bolander*, 722 F.3d 199, 223 (4th Cir. 2013). The privilege may be impliedly waived where, *inter alia*, a party's "mental condition [is] at issue in the case." *Id.*; *see also Bost v. Wexford Health Sources, Inc.*, No. ELH-15-cv-3278, 2017 WL 11453989, at *3 (D. Md. Jan. 31, 2017); *Cappetta v. GC Servs. Ltd. P'ship*, 266 F.R.D. 121, 127–28 (E.D. Va. 2009). "Courts also find an implied waiver when the interests of fairness require waiver, such as when a plaintiff puts his or her mental condition at issue in the case and other instances when the party attempts to use the privilege both as a shield and a sword." *Brooks v. St. Charles Hotel Operating, LLC*, No. DLB-23-cv-208, 2024 WL 3370580, at *5 (D. Md. Feb. 12, 2024) (internal quotation marks omitted) (referencing *Richardson v. Sexual Assault/Spouse Abuse Res. Ctr., Inc.*, 764 F. Supp. 2d 736, 739 (D. Md. 2011)).

Although "courts diverge in their interpretation of implied waiver, with some courts taking a broad, narrow, or middle-ground approach as to what type of emotional distress claims will put

³ Of course, Plaintiff's medical records are not covered by the psychotherapist-patient privilege—the only privilege Plaintiff asserts in her briefings—to the extent such records do not pertain to Plaintiff's communications with a licensed therapist. *Brooks v. St. Charles Hotel Operating, LLC*, No. DLB-23-cv-208, 2024 WL 3370580, at *5 (D. Md. Feb. 12, 2024) ("To assert the psychotherapist-patient privilege, [Plaintiff] must establish that the communications [s]he claims to be protected 'were made (1) confidentially (2) between a licensed psychotherapist and her patient (3) in the course of diagnosis or treatment.'" (quoting *Richardson v. Sexual Assault/Spouse Abuse Res. Ctr., Inc.*, 764 F. Supp. 2d 736, 739 (D. Md. 2011))). However, these records are still subject to the provisions of the Health Insurance and Portability Accountability Act of 1996, 42 U.S.C. 1320d *et seq.*, and cannot be released without Plaintiff's consent or a court order. In light of Plaintiff's *pro se* status and her concerns regarding confidentiality and privacy, the undersigned has given Plaintiff various options regarding disclosure, below. The undersigned further notes that, should Plaintiff proceed with her intentional infliction of emotional distress and emotional damages claims, any medical and/or therapy records she discloses will be subject to the Confidentiality Order referenced in Footnote 2 above.

a party's mental condition sufficiently at issue to constitute a waiver of the privilege,” *Brooks*, 2024 WL 3370580, at *5 (internal quotation marks and citation omitted), a court within this Circuit recently found the narrow approach most appropriate. *Stokes v. IKEA US Retail, LLC*, No. 22-cv-01377-JMC, 2023 WL 1970476, at *4–5 (D. Md. Feb. 13, 2023) (outlining the broad, middle ground, and narrow approach to waiver). “Under the narrow approach, there is no waiver of the privilege when a plaintiff asserts only ‘garden variety’ emotional distress claims.” *Brooks*, 2024 WL 3370580, at *6 (referencing *Cappetta*, 266 F.R.D. at 128). “Instead, waiver is found when the plaintiff ‘affirmatively uses his or her mental condition in the case,’ either through pleading a cause of action that relies on a diagnosis or advice of a psychotherapist or introducing evidence of communications that would otherwise be privileged.” *Id.* (quoting *Cappetta*, 266 F.R.D. at 128).

Here, Plaintiff has done both. As noted, Plaintiff's Fourth Amended Complaint brings a claim for intentional infliction of emotional distress and requests compensatory damages for pain and suffering, emotional distress, and loss of enjoyment of life. (Dkt. No. 79 at 17–18); *see also Nicholson v. Baltimore Police Dep't*, No. DKC 20-cv-3146, 2022 WL 1104575, at *2 (D. Md. Apr. 13, 2022) (noting that an intentional infliction of emotional distress claim requires a showing of severe emotional distress); *Cappetta*, 266 F.R.D. at 128 (noting that “[a] plaintiff waives the [psychotherapist-patient] privilege by claiming negligent or intentional infliction of emotional distress” under either the broad view or narrow view of waiver). Further, Plaintiff seeks to introduce a “summary letter” from her therapist in support of her emotional damages claim, which ostensibly contains privileged information. (Dkt. No. 207-3 at 2); *see also Cappetta*, 266 F.R.D. at 128 (noting that “a plaintiff who intends to use affirmatively her psychotherapist's testimony or records waives the [psychotherapist-patient] privilege, as does a plaintiff who alleges severe or extreme emotional distress damages as a result of defendant's conduct”). Accordingly, the

undersigned concludes that Plaintiff has waived the psychotherapist-patient privilege in this instance.

With that said, the Court finds it in the interest of justice to present Plaintiff with two options as this case proceeds through discovery. First, the Court will not permit Defendants to obtain the requested discovery if Plaintiff wishes to abandon her intentional infliction of emotional distress claim and her claim of emotional damages, as the requested medical and therapy records will no longer prove relevant to Plaintiff's lawsuit. At this juncture, Plaintiff is the "master and commander of the release of [her] medical information," and she is entitled to abandon the relevant claims if she does not want to release her medical and therapy records to Defendants. *Harik*, 2006 WL 8457008, at *2.

However, if Plaintiff continues to pursue her claims for intentional infliction of emotional distress and/or emotional damages, Defendants are entitled to full and fair discovery regarding those claims. *Id.* Thus, if Plaintiff elects to proceed with such claims, she must provide supplemental responses to Request Nos. 7, 8, and 9 on or before January 30, 2026. Her failure to do so will be viewed as Plaintiff's election to waive her intentional infliction of emotional distress and emotional damages claims.⁴

⁴ Defendants also request an award of attorney's fees and costs incurred in bring their Motion to Compel pursuant to Federal Rule of Civil Procedure 37. (Dkt. No. 207 at 8–10.) The undersigned sympathizes with Defendants' frustrations in obtaining the discovery responses at issue here but nonetheless finds an awards of fees and costs inappropriate in light of Plaintiff's *pro se* status. Defendants' request for attorney's fees and costs is therefore **DENIED**. Defendants' further request that the Court strike Plaintiff's claim for emotional distress damages and bar Plaintiff from claiming any such damages at trial if she fails to produce the requested documentation concerning her emotional distress and/or financial and compensation history, and that the Court bar Plaintiff from supporting her claims with evidence that she has failed to produce to Defendants in response to their discovery requests. (*Id.* at 10.) Given the current procedural posture of this case, the undersigned finds Defendants' requests premature. Indeed, Plaintiff has until January 30, 2026 to supplement her discovery responses and provide Defendants with the information requested in their Motion to Compel. (*See generally* Dkt. Nos. 207, 237.) However, in the event Plaintiff fails to comply with her obligations under this Order, Defendants may seek further appropriate relief. Defendants' request is therefore **DENIED**, without prejudice and with leave to refile should Plaintiff fail to properly supplement her discovery requests by January 30, 2026.

II. Plaintiff's Motion to Compel, Motion for Protective Order, and Motion for Sanctions (Dkt. No. 210)

In her Motion to Compel, Motion for Protective Order, and Motion for Sanctions (Dkt. No. 210), Plaintiff asks the Court to compel Defendants to fully respond to a Supplemental Request for Production she served on November 1, 2025, seeking information regarding Defendant Curtiss-Wright's receipt of federal financial assistance. (*Id.* at 1, 5.) She further requests that the Court: require Defendants to produce all communications between Curtiss-Wright, Jackson Lewis, and Amentum relating to Plaintiff; limit the financial and medical information she must produce to Defendants "to documents directly supporting damages"; preclude Defendants from issuing further third-party subpoenas without leave from the Court; extend the discovery deadline by thirty days "for the limited purpose of investigating post-deposition retaliation and taking Jeff Womack's deposition"; award Plaintiff reasonable expenses under Rule 37(d)(3) for costs associated with Defendants' failure to produce Jeff Womack for his deposition on November 5, 2025; quash the October 31, 2025 subpoenas Defendants served on Plaintiff's therapist, Sue E. Shealy, LISW-CP, and Plaintiff's former employer, Amentum Services, Inc., allow Ms. Shealy to withhold privileged records from Defendants, and declare the subpoenas untimely; and compel Defendants to supplement their responses to Plaintiff's First Set of Interrogatories and First Set of Requests for Production within fourteen days, and award her reasonable expenses and costs procured in seeking supplemental responses. (*Id.* at 4–5.)

At the outset, the undersigned notes that certain of Plaintiff's requests have been resolved. For example, Plaintiff's request that the Court limit the financial and medical information she must produce to Defendants "to documents directly supporting damages," the undersigned has addressed this issue in Section I above. Similarly, as described in Section I above, Plaintiff shall have through January 30, 2026 to provide her medical and therapy records to Defendants or elect

to withdraw her claims for intentional infliction of emotional distress and/or emotional damages. Either way, the subpoena served on Plaintiff's therapist will be unnecessary. Plaintiff's request that the Court quash the October 31, 2025 subpoena Defendants served on her therapist is therefore **GRANTED**, as is her request that the Court allow Ms. Shealy to withhold privileged therapy records from Defendants.

Plaintiff's request that the Court quash the October 31, 2025 subpoena Defendants served on Amentum is, however, **DENIED**. As noted above, Plaintiff's employment records are relevant to her claims in the instant litigation and Defendants are entitled to obtain such records through discovery. Plaintiff previously objected to providing materials related to her employment with Amentum, and she has since been terminated. As such, she no longer has access to the materials Defendants seek.⁵ Accordingly, Defendants appropriately subpoenaed the materials.

Further, Plaintiff's request that the Court extend the discovery deadline by thirty days is rendered **MOOT** by the Court's December 4, 2025 Text Order in which the Court extended the parties' deadline to complete the discovery implicated in the discovery motions at issue here to January 30, 2026.⁶ (*See* Dkt. No. 237.)

As for Plaintiff's remaining requests, the undersigned finds that they should be **GRANTED IN PART AND DENIED IN PART**. With respect to her request that the Court compel Defendants to fully respond to her Supplemental Request for Production seeking information regarding Defendant Curtiss-Wright's federal financial assistance, Plaintiff seems to contend that her request should be granted because the information she seeks is essential to her

⁵ What is more, Plaintiff recently filed an employment discrimination lawsuit against Amentum in the Northern District of Florida. (Dkt. No. 215 at 6.)

⁶ In light of this extension and for the reasons set forth in Defendants' Motion for Extension of Time to Complete Discovery (Dkt. No. 217), the undersigned finds it inappropriate to declare the subpoenas Defendants issued to Ms. Shealy and Amentum untimely. Plaintiff's request that the Court do so is therefore **DENIED**. However, Plaintiff's request that the Court preclude Defendants from issuing further third-party subpoenas without leave from the Court is **GRANTED**, and Defendants are instructed to be mindful of the Court's deadlines moving forward.

Title VI claim and pertains to “newly identified information relevant to [Defendant Curtiss-Wright’s] federal-contractor status.” (Dkt. No. 210 at 1–2.) The undersigned notes that this Supplemental Request for Production was served after the expiration of the discovery deadline.⁷ However, in light of Plaintiff’s *pro se* status and the clear relevance of this information to her Title VI claim, Plaintiff’s request is **GRANTED**. Defendants are **ORDERED** to fully respond to Plaintiff’s November 1, 2025 Supplemental Request for Production on or before the January 30, 2026 discovery deadline. (*See* Dkt. No. 237.)

Plaintiff’s requests that the Court require Defendants to produce all communications between Curtiss-Wright, Jackson Lewis, and Amentum relating to Plaintiff is, however, **DENIED**. Plaintiff contends this information is relevant to the instant litigation because “[a]ttorney Lindsay Swiger of Jackson Lewis . . . represents Amentum Corporation,” and because “Plaintiff was terminated from Amentum on October 29, 2025—one day after her deposition in this case, during which Jackson Lewis counsel questioned her extensively about her employment with Amentum and her pending lawsuit against Amentum.” (Dkt. No. 210 at 2.) Plaintiff contends that “[t]he timing and overlapping representation demonstrate a strong appearance of coordinated retaliation and conflict of interest.” (*Id.*) The undersigned recognizes Plaintiff’s concerns here, but notes that any purported retaliation and/or conflict of interest stemming from her termination from Amentum is relevant to *her lawsuit with Amentum*, not the instant civil action.⁸

As for Plaintiff’s request that the Court compel Defendants to supplement their responses to Plaintiff’s First Set of Interrogatories and First Set of Requests for Production within fourteen

⁷ It is worth noting that Plaintiff appears to have misunderstood the Court’s October 30, 2025 Text Order in which the Court extended the discovery deadline *for the limited purpose of* allowing Plaintiff to obtain materials from certain third-parties she had previously subpoenaed. (*See* Dkt. No. 200.)

⁸ It is also worth noting that communications between Jackson Lewis and either of its clients—Curtiss-Wright or Amentum—would likely be protected by attorney-client privilege.

days and her request that the Court award her reasonable expenses and costs procured in seeking Defendants' supplemental responses, Plaintiff has failed to delineate the specific responses she deems deficient and/or any argument as to how those responses are insufficient. The undersigned's independent review of Defendants' responses, (Dkt. Nos. 210-5, 210-6), has revealed no deficiencies. What is more, Defendants assert that they have produced over 1300 pages of documents to Plaintiff—an assertion that Plaintiff does not deny. (*See* Dkt. No. 215 at 13.) As such, the undersigned finds no basis upon which to compel Defendants to supplement their responses to Plaintiff's First Set of Interrogatories and First Set of Requests for Production, and Plaintiff's request for the same is **DENIED**.

Finally, Plaintiff's request that the Court award Plaintiff reasonable expenses under Rule 37(d)(3) for costs associated with Defendants' failure to produce Jeff Womack for his deposition on November 5, 2025 is also **DENIED**. In their response to Plaintiff's motion (Dkt. No. 215), Defendants explain that "Plaintiff unilaterally noticed [this] deposition" and indicated in her notice that, if Jeff Womack was unavailable to be deposed on that date, she would "proceed with the deposition of Dave McKeown at the same date, time and location." (*Id.* at 13.) Defendants further explain that, on the date of the noticed deposition, "Jeff Womack remained out on medical leave, and so Curtiss Wright produced Dave McKeown for deposition. Plaintiff also deposed Antonio Coleman on that same date." (*Id.*) Accordingly, it does not appear that Defendants improperly failed to produce Jeff Womack for his deposition and Plaintiff did not incur additional or unnecessary costs related to the same. Plaintiff's request for an award of reasonable expenses is therefore **DENIED**.

III. Plaintiff's Motion to Compel Discovery, Enforce Subpoenas, and Depose Additional Witnesses (Dkt. No. 214)

In her Motion to Compel Discovery, Enforce Subpoenas, and Depose Additional Witnesses (Dkt. No. 214), Plaintiff asks the Court to compel Defendants “to produce outstanding discovery, comply with previously issued subpoenas, and permit Plaintiff to depose three additional witnesses essential to her claims of discrimination, retaliation and pretext.” (*Id.* at 1.) More specifically, Plaintiff contends that Defendants interfered with her ability to depose Brian Fogarty, Jeff Womack, and Caleb Roy. (*Id.* at 2.) Plaintiff claims that Brian Fogarty “is a comparator witness critical to proving disparate treatment between Plaintiff, a Black female employee, and similarly situated white male employees.” (*Id.*) Plaintiff further claims that Jeff Womack, a former coworker, would provide testimony regarding “internal communications and workplace discussions regarding Plaintiff’s suspension and return to work,” and that his testimony “remains relevant for impeachment and clarification of material facts.” (*Id.*) As for Caleb Roy, Plaintiff claims that he “recently came forward as a new witness” who will testify about bullying “in a pattern consistent with Plaintiff’s allegations of workplace hostility.” (*Id.*) Plaintiff contends his testimony is “necessary to show ongoing retaliation and failure of Curtiss-Wright management to investigate harassment complaints.” (*Id.*) Ultimately, Plaintiff admits that she “has already conducted ten depositions and must obtain leave for any beyond that limit,”⁹ but contends that each of these three additional depositions are “necessary to establish pretext, discrimination, and retaliation under Title VII. (*Id.* at 4.) Defendants oppose Plaintiff’s request, arguing that the depositions are cumulative and duplicative, unnecessary, and disproportionate to the needs of this single-plaintiff employment discrimination lawsuit. (Dkt. No. 230 at 3–4.)

⁹ The undersigned notes that Plaintiff changes course in her subsequent motions (Dkt. Nos. 220, 225), claiming that she did not complete ten depositions. Because the Court grants her request to compel the depositions at issue regardless, whether these depositions exceed the ten permitted by the Federal Rules of Civil Procedure is a moot point.

The undersigned sympathizes with Defendants’ frustrations but nonetheless finds that Plaintiff should be granted leave to depose these additional witnesses in light of her *pro se* status and the purported relevance of the witnesses’ anticipated testimony. Plaintiff’s request to depose additional witnesses is therefore **GRANTED**, and she shall have through January 30, 2026 to depose Brian Fogarty, Jeff Womack, and Caleb Roy. (*See* Dkt. No. 237.)

Plaintiff also explains that she served supplemental discovery requests on Defendants on November 5, 2025, seeking Patrick Ingram’s pay records for 2022-2023; Plaintiff’s and Patrick Ingram’s NDT certification test scores; Patrick Ingram’s final inspection nuclear division certification results; and Antonio Coleman’s badge access times for July 10-17, 2023. (*Id.* at 3.) Antonio Coleman is Plaintiff’s former supervisor. (*Id.*) Patrick Ingram appears to be a comparator—Plaintiff alleges that he received a pay raise, but she did not. (*Id.*) Plaintiff claims the information requested in the supplemental discovery requests she sent Defendants on November 5, 2025 is “directly relevant to Plaintiff’s claims of disparate treatment, comparator evidence, and ongoing discrimination” (*Id.*)

Again, considering Plaintiff’s *pro se* status and the purported relevance of the information requested here, the undersigned **ORDERS** Defendants to respond to the aforementioned discovery requests by January 30, 2026. (*See* Dkt. No. 237.) To the extent the requested information does not exist, or is not in Defendants’ possession, custody, or control, Defendants should provide Plaintiff with an affidavit stating the same.¹⁰

¹⁰ Plaintiff also requests that the Court “compel production of personnel and conversion records by race” to verify certain witness testimony. (Dkt. No. 214 at 5.) However, this request is not contained in the supplemental request for production sent to Defendants, (Dkt. No. 214-6), and is therefore **DENIED**.

IV. Plaintiff's Motion for Protective Order, Motion to Quash, and Motion for Sanctions (Dkt. No. 220)

In her next motion, Plaintiff “moves for an immediate Protective Order, an Order quashing Defendants’ subpoenas for Plaintiff’s psychotherapy and medical records, and an award of sanctions.” (Dkt. No. 220 at 1.) In support of these requests, Plaintiff primarily claims that Defendants’ requests for therapy records, employment records, and financial records are not proportional to the needs of the case and are intended to harass her. (*See generally id.*) Plaintiff ultimately requests that the Court: quash Defendants’ subpoenas to Plaintiff’s therapist and all medical providers;¹¹ prohibit Defendants from seeking any medical or psychotherapy records other than the summary therapist letter already offered; prohibit Defendants from obtaining her tax returns; limit discovery to “wages, dates of employment, and non-medical information regarding mitigation”; order Defendants to withdraw their overbroad discovery requests; impose monetary sanctions on Defense Counsel for purported bad faith conduct in seeking discovery; and issue any further relief necessary to protect Plaintiff’s privacy and prevent ongoing harassment through discovery. (*Id.* at 6.)

The Court has already considered and ruled upon Plaintiff’s first five requests in Section I above, and Plaintiff’s renewed requests are **DISMISSED AS MOOT** for the reasons stated therein. As for Plaintiff’s request that the Court impose monetary sanctions on Defense Counsel for bad faith conduct and/or issue any further relief necessary to protect Plaintiff’s privacy and prevent ongoing harassment, the undersigned finds no basis upon which to grant these requests. Indeed, the record before the Court does not indicate bad faith conduct on the part of Defendants or Defense Counsel. In fact, the discovery requests Plaintiff takes issue with here are standard

¹¹ It does not appear Defendants have attempted to subpoena Plaintiff’s medical providers (other than her therapist) at this juncture.

requests frequently permitted in this Court. Plaintiff's sixth and seventh requests are therefore **DENIED**.

V. Plaintiff's Motion to Compel the Depositions of Jeff Womack, Brian Fogarty, and Caleb Roy (Dkt. No. 225)

In her next motion (Dkt. No. 225), Plaintiff again requests that the Court compel the depositions of Jeff Womack, Brian Fogarty, and Caleb Roy. (*Id.* at 1.) Plaintiff further claims that Defendants interfered with her attempts to depose these witnesses. (*See generally id.*) She therefore asks that the Court impose sanctions on Defendants. As described in greater detail in Section III above, the Court will allow Plaintiff to depose Jeff Womack, Brian Fogarty, and Caleb Roy. Accordingly, Plaintiff's motion (Dkt. No. 225) is **DISMISSED AS MOOT** with respect to this request. As for Plaintiff's request that the Court impose sanctions on Defendants, the undersigned finds no reason to do so. Again, the record before the Court does not indicate bad faith conduct on the part of Defendants or Defense Counsel. This portion of Plaintiff's motion (Dkt. No. 225) is therefore **DENIED**.¹²

CONCLUSION

For the foregoing reasons, the Court **GRANTS IN PART AND DENIES IN PART** Defendants' Motion to Compel (Dkt. No. 207); **GRANTS IN PART AND DENIES IN PART** Plaintiff's Motion to Compel, Motion for Protective Order, and Motion for Sanctions (Dkt. No. 210); **GRANTS IN PART AND DENIES IN PART** Plaintiff's Motion to Compel Discovery, Enforce Subpoenas, and Depose Additional Witnesses (Dkt. No. 214); **DISMISSES IN PART AND DENIES IN PART** Plaintiff's Motion for Protective Order, Motion to Quash, and Motion

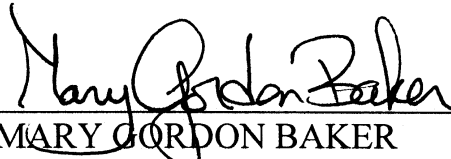
¹² The parties' have articulated their various arguments in lengthy and numerous briefings throughout the record, providing the Court with ample information regarding the discovery disputes at issue. The undersigned therefore finds a hearing unnecessary and **DENIES** Plaintiff's request for the same.

for Sanctions (Dkt. No. 220); and **DISMISSES IN PART AND DENIES IN PART** Plaintiff's Motion to Compel the Depositions of Jeff Womack, Brian Fogarty, and Caleb Roy (Dkt. No. 225).

Having resolved all current discovery disputes in this case, the undersigned cautions that **NO FURTHER EXTENSIONS OF THE DISCOVERY DEADLINE WILL BE GRANTED.** At this juncture, the discovery deadline has expired, except to allow the parties to comply with the orders and instructions set forth herein. Thus, any additional discovery requests served after the date of this Order are untimely, and the parties need not comply with them. Additionally, the Court will not entertain further discovery motions unless pertinent to the orders and instructions set forth herein.

IT IS SO ORDERED.

December 15, 2025
Charleston, South Carolina



MARY GORDON BAKER
UNITED STATES MAGISTRATE JUDGE